



EMPLOYER ENGAGEMENT QUICK GUIDE

WIOA REGULATIONS AND EXPLANATION OF DUAL-CUSTOMER APPROACHES

The Workforce Innovation and Opportunity Act (WIOA, 2014) amends/reauthorizes four programs:

1. Workforce Investment Act of 1998
2. Adult Education and Family Literacy Act
3. Wagner-Peyser Act of 1933
4. Rehabilitation Act of 1973

Please note: The Federal VR program allows some variation in how states implement services.

This synopsis discusses the changes WIOA now requires for all states about employer engagement. Any changes WIOA has made to your state's VR program depends on how your VR program was set up prior to WIOA.

One of the principles of WIOA is creating a Workforce Development system in which the core partners are aligned to meet the needs of job seekers as well as business and employers. Each core partner plays a unique role.

For guidance and additional information, please visit:

- » [US Department of Labor: WIOA](#)
- » [Rehabilitation Services Administration WIOA Reauthorization](#)

WIOA REGULATION REGARDING SERVICES FOR EMPLOYERS

One of the most significant changes in WIOA was the addition of Section 109 to Title IV. Section 109 added language allowing VR agencies to provide training and services to employers who have hired or are interested in hiring individuals with disabilities. Section 109 brought the dual-customer approach from a state VR-initiated cultural shift to a national law. While the phrase "dual-customer" does not appear in the language of the law, the concept behind the terminology is consistent with the addition of Section 109.

SEC. 109. Training and Services for Employers

[29 U.S.C. 728a]

A State may expend payments received under section 111 to educate and provide services to employers who have hired or are interested in hiring individuals with disabilities under programs carried out under this title, including—

- (1) providing training and technical assistance to employers regarding the employment of individuals with disabilities, including disability awareness, and the requirements of the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.) and other employment-related laws;
- (2) working with employers to—
 - (A) provide opportunities for work-based learning experiences (including internships, short-term employment, apprenticeships, and fellowships), and opportunities for pre-employment transition services;
 - (B) recruit qualified applicants who are individuals with disabilities;
 - (C) train employees who are individuals with disabilities; and
 - (D) promote awareness of disability-related obstacles to continued employment;
- (3) providing consultation, technical assistance, and support to employers on workplace accommodations, assistive

technology, and facilities and workplace access through collaboration with community partners and employers, across States and nationally, to enable the employers to recruit, job match, hire, and retain qualified individuals with disabilities who are recipients of vocational rehabilitation services under this title, or who are applicants for such services; and

(4) assisting employers with utilizing available financial support for hiring or accommodating individuals with disabilities.

WIOA requires that VR agencies have formal cooperative agreements with workforce partners and that each state workforce system submit a Unified State Plan. WIOA emphasizes collaboration between workforce development system partners, including having common performance measures.

INDICATORS OF PERFORMANCE

WIOA established a primary indicator where states must report their workforce system's effectiveness of serving employers. VR program participant success relies on collaboration between employers and workforce partners. This indicator is a shared outcome across all of the core programs in the state to ensure a holistic approach to serving employers.

Each of the core programs must select two of three potential pilot approaches to report for their state. They may also establish a third state-specific approach.

The three pilot approaches are:

1. Retention with the same employer
2. Repeat business customers
3. Employer penetration rate

The contents of this PIRTEE training were developed under grant #H263C190012 from the U.S. Department of Education. The Department does not mandate or prescribe practices, models, or other activities described or discussed in this document. The contents of this presentation may contain examples of, adaptations of, and links to resources created and maintained by another public or private organization. The Department does not control or guarantee the accuracy, relevance, timeliness, or completeness of this outside information. This content does not necessarily represent the policy of the Department. This publication is not intended to represent the views or policy of or be an endorsement of any views expressed or materials provided by any Federal agency. (EDGAR 75.620)

The Program on Innovative Rehabilitation Training on Employer Engagement is a project of ExploreVR at the Institute for Community Inclusion, UMass Boston. ExploreVR offers VR agencies easy and convenient access to a range of VR research, related data, training and tools for planning, evaluation, and decision-making. Funding for this project is provided by the Rehabilitation Services Administration (RSA) Grant #H263C190012.

HOW DOES THE WORKFORCE INNOVATION & OPPORTUNITY ACT MEASURE EMPLOYER ENGAGEMENT?

WIOA established performance accountability indicators and reporting requirements to measure business engagement outcomes. States can determine what aspects of their business engagement efforts they will track, but must choose two of the following three criteria:

RETENTION

The percentage of participants who exit and are employed with the same employer in the second and fourth quarters after exit.



EMPLOYER PENETRATION RATE

The percentage of employers using the core program services out of all employers represented in an area or state served by the public workforce system.

REPEAT BUSINESS CUSTOMERS



The percentage of employers using agency services out of all employers in the state that use core program services more than once.

FOR MORE INFORMATION ABOUT THESE THREE APPROACHES, INCLUDING DETAILS ON HOW TO CALCULATE THEM, PLEASE SEE PAGES 22-25 OF RSA-TAC-17-01.



The Program on Innovative Rehabilitation Training on Employer Engagement is funded by Rehabilitation Services Administration Grant (RSA) #H263C190012.